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Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Civil Revision No. **13567/2020**

National Highway Authority etc.

Versus

Ghulam Ali (deceased) through legal heirs etc.

J U D G M E N T

Date of hearing:	21.03.2025
Petitioners by:	Mr. Umer Sharif, Advocate assisted by Ch. Muhammad Arshad, Advocate.
Respondents by:	Mian Tahir Maqsood, Advocate assisted by Rana Muhammad Yasir, Advocate.

MALIK WAQAR HAIDER AWAN, J:- Through the instant Civil Revision, petitioners have assailed order dated 20.02.2014 passed by learned Senior Civil Judge, Gujrat and judgment dated 05.09.2019 passed by learned District Judge, Gujrat. By virtue of the former order, learned executing court directed the petitioners/judgment debtors to deposit the decretal amount in the court for its onward distribution to the legal representatives of Ghulam Ali (deceased)/decree holders. Through the latter judgment, appeal preferred by the petitioners against order dated 20.02.2014 was dismissed.

2. The controversy involved in this case is whether order and judgment passed by both the learned courts below are legal and execution petition filed by respondents was well within time as prescribed and not barred by limitation.

3. Learned counsel for the petitioners contends that execution petition filed by respondents before learned executing court was hopelessly barred by time as litigation between the parties attained finality on 03.03.2004 as limitation starts running from the date of

order passed by this Court in RFA No. 56/2002 whereby decision of learned Civil Judge in Reference under Section 18 of the Land Acquisition Act, 1894 (hereinafter called **"Act"**) was modified. Adds that although petitioners approached the Supreme Court of Pakistan by filing a CPLA against that order whereby leave was refused vide order dated 13.05.2009 without issuance of notice to present respondents, thus the date for commuting limitation for filing of execution petition would start from 03.03.2004. In support of his arguments, learned counsel has relied upon the judgments reported as *Bakhtiar Ahmed v. Mst. Shamim Akhtar and others* **(2013 SCMR 5)**, *House Building Finance Corporation of Pakistan v. Rana Muhammad Iqbal through L.Rs.* **(2007 SCMR 1929)**, *National Bank of Pakistan v. Mian Aziz-ud-Din and 7 others* **(1996 SCMR 759)** and an unreported judgment dated 19.03.2008 rendered by this Court in EFA N. 152/2007 titled *Sheikh Muhammad Akram v. United Bank Limited etc.* Submits that as per Article 181 of the Limitation Act, 1908, which is a residuary provision, limitation of 03 years is provided for filing of execution petition and in this way, limitation commenced on 03.03.2004 and expired on 03.03.2007. Submits that admittedly, execution petition was filed on 11.02.2010 which is beyond the limitation provided for filing of execution petition, however, petitioners filed objection petition in response to the execution petition whereby they took a preliminary objection that it was barred by time. He has stressed that learned Senior Civil Judge, Gujrat failed to adhere to the point of limitation and while erroneously entertaining the execution petition directed the petitioners to deposit the decretal amount. Further submits that in sequel to the said order, an appeal was filed by petitioners which was dismissed by learned District Judge, Gujrat while misconstruing the facts and law and referring interim order dated 25.02.2013 whereby present petitioners promised to pay the bank cheque of Rs. 24,00,000/- for satisfying the decree.

4. Conversely, learned counsel for respondents contends that the objection petition referred to by learned counsel for the petitioners was

dismissed on 02.05.2011 while considering the objections raised by petitioners' side not maintainable and proceedable and also referring the judgment dated 03.03.2014 passed by this Court wherein in paragraphs No. 15 and 16, complete guidance and details were given that how much amount petitioners will pay and with what proportion. Learned counsel makes reference to the undertakings made by petitioners on different dates especially interim orders of executing court dated 08.02.2013, 25.02.2013, 22.03.2013 and 03.04.2013 whereby adjournments were sought for satisfaction of the decree. He has also referred to Section 31 of the Act and at the fag end of his arguments, he submits that land was acquired for construction of motorway but petitioners have not been fully paid the compensation price which is point of deprecation for the Government institutions towards citizens of the country. Further submits that petitioners challenged the execution of money decree, therefore, they were supposed to deposit the amount under Order XXI Rule 23-A and Section 47 of CPC. Places reliance on *Messrs Nowshera Bricks and Tiles (Pvt.) Limited and others v. Regional Development Finance Corporation* **(2002 CLC 904)**, *Allied Bank of Pakistan Ltd. v. Fateh Textile Mills Limited* **(PLD 2007 Karachi 397)**, *The Madura Hindu Permanent Fund Limited v. Kamakshi Ammal and another* **(AIR 1926 Madras 492)**.

5. Heard. Record perused.

6. If the objection raised by learned counsel for the petitioners that execution petition was barred by time and petitioners are not bound to pay the remaining amount as judgments are not executable, then the other side of the picture is whether they are ready to return the land which was acquired for construction of motorway which, to my mind, is not possible now. If the land acquired by the petitioners is not returnable, then they cannot raise the point of limitation. State institutions are not supposed to hide behind the technicalities and they are required to fulfill the cause of substantial justice. Apart from this, Section 31 of the Act requires the payment of subject land at very

initial stage and it is nowhere provided in the Act that in case of non-receiving of compensation or approaching for the same with delay, the right to receive the compensation would be extinguished. As in the present case, the land is "acquired" and not a matter of sale and purchase between two parties, due to which legislature has intentionally employed the word "compensation" instead of price of land as the land owner cannot resist the process of acquisition which is a compulsory process, he only can make efforts to get enhanced compensation.

7. Learned counsel appearing on behalf of petitioners, except raising this technical objection of limitation, has not raised any other point. Apart from making partial payment of compensation of land acquired from respondents, they kept on promising and gaining time for satisfaction of decree during the execution proceedings as is evident from the interim orders referred in the preceding paragraph No.4. Thus, **acquiescence** and **promissory estoppel** come in the way when learned counsel raised point of limitation as he did not raise any objection regarding their authenticity, even otherwise, judicial record has presumption of correctness. As per Section 19 of the Limitation Act, 1908, after acknowledgements which are made by petitioners as per referred interim orders in paragraph No.4, a fresh period of limitation is to be computed.

8. It is very unfortunate to note that instead of being thankful to the respondents from whom land was acquired for the mega project (Motorway), petitioners have made them rolling stones as despite lapse of such a considerable period and decisions of Courts in their favour, they have not been paid according to their entitlement.

9. Article 3 of the Constitution of Islamic Republic of Pakistan (hereinafter called **"the Constitution"**) relates to elimination of exploitation of citizens of Pakistan. From the bare perusal of the said Article, it can safely be observed that State run institutions, working in a representative form, are not expected to exploit the vulnerability of

citizens. Undeniably, State is like a mother and it is its primary duty to protect the rights of its children (citizens of Pakistan). In addition to above, Article 24 of the Constitution deals with protection of property rights and after going through said Article, it can safely be said that compensation rights of citizens would not be extinguished in any manner. It is pertinent to mention here that fundamental rights are a crucial aspect of State's role in protecting its citizens. The Constitution guarantees several fundamental rights to its citizens. While focusing the matter in issue, I feel it necessary to observe here that substantial justice should not be ignored as it is a key principle of a fair and just society. This principle is fundamental to ensuring that the law is applied fairly and that people's rights are respected. It goes hand-in-hand with the right to a fair trial (as mentioned in Article 10-A of the Constitution), where the goal is not just to follow procedures but to achieve just outcomes.

10. As regards the judgments cited by learned counsel for the petitioners, in the light of admissions and promises made by petitioners' side before the learned executing court, the same are not applicable to the facts of present case.

11. Epitome of the above discussion is that this Court does not find any illegality, legal infirmity, jurisdictional defect, mis-reading, non-reading of record in the impugned order and judgment to which no exception can be taken by this Court in revisional jurisdiction. With this observation, this Civil Revision being devoid of merits stands **dismissed**.

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
28.03.2025

APPROVED FOR REPORTING

JUDGE

Abis Ali